

HOUSE No. 2688

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey N. Roy and Paul McMurtry

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a primary seat belt law.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey N. Roy</i>	<i>10th Norfolk</i>	<i>1/14/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>1/14/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/27/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/27/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/27/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>3/19/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>4/14/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>6/24/2025</i>

HOUSE No. 2688

By Representatives Roy of Franklin and McMurtry of Dedham, a petition (accompanied by bill, House, No. 2688) of Jeffrey N. Roy, Paul McMurtry and others relative to establishing a primary seat belt law. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2395 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a primary seat belt law.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13A of chapter 90 of the General Laws, as appearing in the 2018
2 Official Edition, is hereby amended by striking the second paragraph, and inserting in the place
3 thereof the following:

4 Any person who operates a motor vehicle without a safety belt, and any person 16 years
5 of age or over who rides as a passenger in a motor vehicle without wearing a safety belt in
6 violation of this section, shall be subject to a fine of 50 dollars. Any operator of a motor vehicle
7 shall be subject to an additional fine of 50 dollars for each person under the age of 16 and no
8 younger than 12 who is a passenger in said motor vehicle and not wearing a safety belt. The
9 provisions of this section shall be enforced by law enforcement agencies when an operator of a
10 motor vehicle or passenger who rides in the motor vehicle is not wearing a safety belt in

11 violation of motor vehicle laws. Safety belt violations will not result in surcharges on motor
12 vehicle insurance premiums, and a police officer may not search or inspect a motor vehicle, its
13 contents, the driver, or a passenger solely because of a violation of this section. Fees derived
14 from primary seat belt citations will be deposited in the Head Injury Treatment Services Trust
15 Fund established pursuant to section 59 of chapter 10.

16 SECTION 2. The provisions of Section 1 shall take effect 180 days from the effective
17 date of this act.